

ANDREWS v ANDERSON

23CV46644

PLAINTIFF'S MOTION TO SET ASIDE DISMISSAL; DEFENDANT'S MOTION TO ENFORCE SETTLEMENT

This case involves a breach of contract dispute Meg Andrews ("Plaintiff") and David Anderson ("Anderson,") Anderson Construction ("Construction") and Heather Ugale ("Ugale") (collectively "Defendants.")

Now before the Court are two competing motions: Defendants move to enforce a settlement agreement ("Agreement") between the parties, while Plaintiff moves to set aside the dismissals entered pursuant to the Agreement and to set the matter for trial. As the motions relate, the Court will consider them together herein.

I. Background

On March 17, 2023, Plaintiff, by and through her then-counsel Lawrence Niermeyer ("Niermeyer") filed the present action against Defendants alleging: 1) breach of contract, 2) fraud, 3) conspiracy, 4) accounting, and 5) elder abuse. Plaintiff alleged that Defendants orally contracted to construct a family home for her, were paid for those services, and yet Defendants failed to do the required work. After subsequent demurrers, Plaintiff filed a third amended complaint on October 25, 2023, alleging breach of contract, fraud and elder abuse. After another demurrer, the remaining allegations allowed by Plaintiff were for breach of contract and fraud.

The parties proceeded with discovery and discovery disputes throughout 2024, with Plaintiff continuing to be represented by attorney Niermeyer. On January 13, 2025, the Court held a mandatory settlement conference, at which Plaintiff was present with her counsel Niermeyer. The parties did not reach a settlement, and the matter was set for trial on August 6, 2025.

On July 23, 2025, Niermeyer filed a notice of settlement of the entire action. The notice stated that the settlement was conditional upon certain items and that dismissal would be undertaken before January 15, 2026. On that same date, Niermeyer filed a notice of dismissal for both Construction and Ugale. The court trial scheduled for August 6, 2025, was vacated.

Purportedly on November 20, 2025, Plaintiff terminated her relationship with Niermeyer and on December 4, 2025 attorney Alan Hamilton (“Hamilton”) filed notice of change of Plaintiff’s counsel. Hamilton filed the instant motion to vacate dismissals on November 26, 2025. However, from the Court’s formal procedural perspective, the change in attorney was not effected until January 7, 2026, when the formal Substitution of Attorney was filed.

On December 5, 2025, Defendants filed their motion to enforce the Agreement.

II. Legal Standard

Code of Civil Procedure § 473(b) provides:

The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.

Pursuant to Code Civ. Procedure section 664.6:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

A judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment. (*Weddington Productions, Inc. v. Flick* (1997) 60 Cal.App.4th 793, 809.)

III. Discussion

Plaintiff’s motion to vacate is premised on her position that she did not sign or agree to the Agreement and therefore the dismissals should never have been entered. Accordingly, the Court examines the Agreement and the procedure set forth in Code Civil Procedure section 664.6.

“Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (*Weddington Productions, Inc. v. Flick* (1997) 60 Cal.App.4th 793, 809.) However, “in order to be enforceable pursuant to the summary procedures of section 664.6, a settlement agreement must either be entered into orally before a court or must be in writing and signed by the parties. (*Ibid.*) A “writing is signed by a party” if it is signed by: 1) the party, 2) the attorney who represents the party, or 3) an insurer or insurer’s agent. (Code Civ. Proc. §664.6(b)(1)-(3).) After section 664.6 was amended effective January 1, 2021, it is clear that 664.6 expressly “allow[s] an attorney for a represented party to sign a writing settling pending litigation on her or her client’s behalf.” (*Greisman v. FCA UC, LLC* (2024) 103 Cal.App.5th 1310, 1324.)

Here, Plaintiff and Niermeyer both agree that she did not personally sign the settlement agreement, though Niermeyer avers under oath that he signed Plaintiff’s name with her authorization. (Declaration of Lawrence T. Niermeyer (“Niermeyer Decl.”) ¶ 20.) At this juncture, the Court does not weigh in on the propriety of an attorney signing for his client. Again, whether Plaintiff herself signed the Agreement is of no import because pursuant to Code of Civil Procedure section 664.6(b)(2), a settlement agreement, in writing, is “signed by the party” when it is signed by either the party or the party’s attorney. (See, *Ford Motor Credit Co. LLC v. Melgar*, 2025 Cal.Super.LEXIS 55601.) Here, Niermeyer was actively representing Plaintiff at the time he signed the Agreement and the Agreement is enforceable pursuant to section 664.6.

The Court recognizes that Plaintiff also asserts that she did not agree to the terms of the Agreement. However, upon review of the evidence provided, the Court finds it more likely than not that Plaintiff was not only fully aware of the terms but agreed to them.

Defendants submit declarations of Niermeyer and his legal assistant Christopher Citi. According to Niermeyer’s sworn declaration:

Upon receipt of Defendant’s increased offer, I telephoned Meg Andrews and discussed the proposed amount of fifteen thousand dollars (\$15,000.00) together with the monthly payment terms. During this conversation Ms. Andrews and I discussed the amount of Defendant’s bond, the validity of her claims against Defendant Heather Ugale¹, the lack of any insurance coverage for Defendants David Anderson and Anderson Construction, the anticipated fees and costs that she would incur proceeding to trial, how she would collect any judgment that she might be awarded following trial, the discussions that she heard between

¹ Ugale is Construction’s secretary and according to Defendants, Plaintiff admitted in discovery that she knew Ugale was a secretary, not an owner of Construction, and not a party to the contract.

Attorney Fluetsch and I before her deposition regarding Defendant's continued payment of his attorney fees, and a potential filing for Bankruptcy should she prevail at trial. (Niermeyer Decl. ¶ 9.)

According to Niermeyer, Plaintiff informed him that she was unhappy with the amount offered but that she would accept if he could not get the Defendants to pay anymore. (*Id.* ¶ 10.) Niermeyer thereafter attempted to secure additional settlement funds but Defendants' maximum offer remained \$15,000.00. (*Id.* ¶ 11.) Thereafter, Niermeyer avers that he had another phone call with Plaintiff:

I then telephoned Meg Andrews and told her that the fifteen thousand dollars (\$15,000.00) was the final offer as Defendants were not willing to pay any additional amount. In response, Meg Andrews told me again that she would agree to the fifteen thousand dollars (\$15,000.00) as, "getting something is better than getting nothing at all." (Niermeyer Decl. ¶ 12.)

Niermeyer avers that Fleutsch was informed of Plaintiff's acquiescence and prepared the Agreement. (Niermeyer Decl. ¶ 13.) Upon receipt of the Agreement, Niermeyer attempted to fax the Agreement to Plaintiff for review (she did not have email) and instead Plaintiff asked Niermeyer to read the Agreement to her over the telephone. (*Id.* ¶ 14.) Niermeyer asked his legal assistant Christopher Citi to sit in during that phone conversation, during which Plaintiff asked multiple questions about the Agreement. (*Id.* ¶ 15.) Niermeyer recalls that Plaintiff's questions included concerns about what would happen if the payments were late, why did the parties need to stipulate to judgment, and how Defendants' bankruptcy might affect her ability to collect her money. (*Ibid.*)

Niermeyer avers that the Agreement was then altered to include protection for Plaintiff in the event of any bankruptcy. (*Ibid.*) Niermeyer avers that after he read each paragraph of the Agreement to Plaintiff, he "specifically asked if she had any questions regarding that paragraph." (*Id.* ¶ 16.) Niermeyer further avers that "I did not proceed to the next paragraph until Ms. Andrews that she understood and acknowledged agreed to the terms, conditions, and/or requirements of each paragraph." (*Ibid.*) After some back and forth on the Agreement's language to protect Plaintiff in the event of bankruptcy, Niermeyer informed Plaintiff again of the terms and asked her to come to the office to sign the Agreement, or to receive it by email or fax. Plaintiff refused those options, but orally advised Niermeyer that he could place her signature on the Agreement. (*Id.* ¶ 20.)

The declaration of Niermeyer's legal assistant, Christopher Citi, confirms Niermeyer's recollection of events. Mr. Citi avers that he was in the room when Niermeyer was on the phone with Plaintiff to read her the Agreement. (Declaration of Christopher Citi ("Citi Decl.") ¶¶ 4-5.) Citi avers that Niermeyer read the Agreement to Plaintiff, stopping after each paragraph to ask if she had questions and understood the terms. (*Id.* ¶¶ 6-7.) Citi avers that after reading the entire Agreement to Plaintiff, Niermeyer asked if Plaintiff

understood and agreed to the terms and she stated that she did. (*Id.* ¶ 8.) Citi further avers that he recalls Plaintiff's concern about the potential impact of any bankruptcy and that Niermeyer resolved to have those concerns addressed in the Agreement. (*Id.* ¶ 6.)

According to Citi, in that same week, Plaintiff called the office and he had a "detailed discussion regarding the settlement with her." (*Id.* ¶ 13.) Citi avers:

During that conversation, Ms. Andrews asked questions regarding the time frame in which all the documents would be submitted to the Court, so the case would be concluded, and never mentioned that she was not in agreement with the terms of the Settlement Agreement. (*Id.* ¶ 13.)

The Court therefore finds that the parties stipulated in a writing signed by the parties for settlement of the case. The Court further finds that Defendants have complied with the terms of the Agreement by paying Plaintiff \$15,000.00. Plaintiff has failed to comply with the Agreement because she has refused to request dismissal of Anderson with prejudice.

Accordingly, the **motion to enforce settlement agreement is granted. Plaintiff is ordered to dismiss Anderson, with prejudice, within ten (10) days of this Order.**

Because the Court has determined that the settlement agreement was valid and enforceable, the **motion for relief sought by Plaintiff is denied.**

The clerk shall provide notice of this ruling to the parties forthwith. Defendants to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

COMPREHENSIVE CONSTRUCTION SERVICES v TAL

25CV48174

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES

This matter involves a contract dispute between Comprehensive Construction Services ("Plaintiff") and Ladybug Ventures ("Ladybug.") Now before the Court is Plaintiff's post-trial motion for attorney's fees and costs. The motion is unopposed.

I. BACKGROUND

On October 10, 2024, Plaintiff filed this action against Johnathon Tal ("Tal") alleging causes of action for breach of oral contract, goods sold and delivered, account stated and open account. (During trial, Ladybug was substituted for Tal by stipulation.)

The matter was tried by the Court on November 5, 2025, with a resulting judgment signed on November 24, 2025. On Plaintiff's complaint, the Court found that Plaintiff was entitled to \$17,791.61 from Ladybug on its causes of action for breach of oral contract, for goods sold and delivered, and for open account. The judgment also stated that Plaintiff "is the prevailing party in this matter" and that Plaintiff could seek attorney's fees pursuant to motion.

II. LEGAL STANDARD

Pursuant to Civil Code section 1717(a):

In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.